

STATE OF NEW YORK

4344--A

2025-2026 Regular Sessions

IN SENATE

February 4, 2025

Introduced by Sen. COMRIE -- read twice and ordered printed, and when printed to be committed to the Committee on Disabilities -- recommitted to the Committee on Disabilities in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the mental hygiene law, in relation to requiring the office for people with developmental disabilities to issue a residential request list and placement report to the governor and the legislature

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The mental hygiene law is amended by adding a new section 13.28 to read as follows:

§ 13.28 Office for people with developmental disabilities; residential request list and placement report.

(a) The office shall issue a report to the governor, the speaker of the assembly, and the temporary president of the senate, within eighteen months of the effective date of this section, setting forth the number of individuals with developmental disabilities who are on the residential request list seeking placement. The residential request report shall include:

1. the statewide number of individuals awaiting placement broken down into the total number of individuals from within each developmental disability services office's geographic area;

2. the number of individuals awaiting placement in any certified residential setting categorized by the length of time such individuals have been awaiting placement, and divided into certified out-of-home, supervised, supportive placement and the number of such persons who are medically frail requiring intensive medical care; and

3. the number of individuals expected to require home and community based services waiver-funded habilitation services at-home.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 (b) The commissioner shall issue a report summarizing the number of
2 individuals who are currently placed in a residential program and who
3 are awaiting an alternative placement. These individuals shall be
4 divided according to:

5 1. the number and age of such individuals;

6 2. the number of children in residential placements expected to age
7 out of such placements within a year and plans for continuing their
8 placements as adults;

9 3. the number of individuals who have asked for an alternative place-
10 ment, either themselves or through their parent or guardian acting on
11 their behalf, over the twelve month period preceding the date of release
12 of the report, with categorical descriptions of the reasons for such
13 results and any actions taken or planned to remedy such situation; and

14 4. any other information deemed necessary by the commissioner.

15 § 2. This act shall take effect on the ninetieth day after it shall
16 have become a law.